Submit hard copy to Sunnyvale City Clerk

County of Santa Clara Registrar of Voters

BALLOT MEASURE REBUTTAL ARGUMENT FORM

This **Ballot Measure Rebuttal Argument Form** must be submitted **for all ballot measure REBUTTAL ARGUMENTS,** with required signatures and author information. ~~The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the Rebuttal argument in Microsoft Word version to candidateservices@rov.sccgov.org.~~ Any errors submitted on the form or Rebuttal argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the rebuttal filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

The author of a rebuttal argument may sign the rebuttal argument or may authorize in writing any other person to author/sign the rebuttal argument. A signed Consent Form is required to authorize a person to author/sign the rebuttal argument who was not an author of the primary argument – Please refer to Section 4, page 5.

Because anyone listed as an author should have the opportunity to review the rebuttal argument, the full text of the rebuttal argument should be attached to all Consent Forms.

Office Use Only

Time/Date Stamp

FILED

AUG 17 2026

REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy
9:10 p.m.

RECEIVED
AUG 2026
CITY CLERK'S OFFICE
CITY OF SUNNYVALE

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Sunnyvale

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

SECTION 1: ARGUMENT INFORMATION

Measure Letter G

Select the Type of Argument you are Filing

☐ Rebuttal to the Argument in Favor / Opponent

☑ Rebuttal to the Argument Against / Proponent

SECTION 2: AUTHOR INFORMATION

Declaration Related to Proponent/Opponent Rebuttal Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

Please Select the Applicable Line

☐ **I am an Author of the Opponent Rebuttal Argument** (noted above) for **Measure** ____ being submitted. I oppose this measure.

☑ **I am an Author of the Proponent Rebuttal Argument** (noted above) for **Measure** G being submitted. I support this measure.

Arguments in support or opposition of the proposed laws are the opinions of the authors.

Rebuttal to Argument in Favor of Measure ☐

[or]

Rebuttal to Argument Against Measure ☒

START

[Pursuant to §9285: Maximum 250 words]

Design-build construction has been a tried and proven bid process in California for more than thirty years. Unifying design and construction under a single contractor **improves efficiency and communication**, speeding project delivery and improving quality.

The opposition says "If it ain't broke, don't fix it". But the current system *is* broken. That's why City staff proposed allowing design-build contracting. They understand what the current system costs us all in money, time, and litigation. And that's why Senate Bill 935 (R-Choi) passed with unanimous bipartisan support to **permanently** authorize local agencies to use design-build, "which has streamlined project delivery, reduced costs, and encouraged innovation in public works for decades."

The opposition's remaining arguments are also misleading. They claim that design-build will lead to "lowball" contract submissions, but that's the problem with the current "low-bid" system, which primarily evaluates proposals on cost. They cite the Belmont Learning Center, but LAUSD chose to site BLC on an active earthquake fault and former oil field (www.presstelegram.com/2008/04/10/a-400-million-lesson/). They cite Jose Huizar's corruption conviction, but he was jailed for dealings with private developers, not city contractors (https://abc7.com/post/disgraced-former-la-city-councilman-jose-huizar-due-to-begin-prison-sentence/15401128/). These arguments aren't just wrong—they're irrelevant.

Sunnyvale's professional city staff recommended bringing the option of design-build construction to you, the voters. The independent, citizen-led Charter Review Committee and your elected City Council **unanimously agreed**. **Sunnyvale residents deserve the best value and efficiency**, not just the lowest bid.

Learn more at www.YES-on-GHI.com, and **vote YES on Measure G.**

END

RECEIVED
AUG 17 2026
CITY CLERK'S OFFICE
CITY OF SUNNYVALE

REBUTTAL ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached rebuttal argument hereby states that such rebuttal argument is true and correct to the best of **their** knowledge and belief. You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.

PLEASE NOTE: If the rebuttal argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final

FILER / SIGNER SECTION

The Filer of a Rebuttal Argument is the person or entity that is responsible for filing an argument for or against a measure. The Signer of the Rebuttal Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE REBUTTAL ARGUMENT

RECEIVED
AUG 17 2026
CITY CLERK'S OFFICE
CITY OF SUNNYVALE

* Required information.

I am the **FILER** of the rebuttal argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the rebuttal argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's rebuttal argument is:

* **My Name is:** Larry Klein

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted] Sunnyvale, CA 94086

* Email Address: [redacted] Phone Number (cell) [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE REBUTTAL ARGUMENT

AS A SIGNER: **I am a:** ☐ Registered Voter in the District ☑ Governing Board Member ☐ * Principal Officer of an Organization

* **I have attached one of the following items listed on Page 2 to this form.**

* **My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

* **My SIGNING ORDER** on the Argument text to be published is: ☑ 1 / ☐ 2 / ☐ 3 / ☐ 4 / ☐ 5 *(please check one)*

* **My name as a SIGNER** (signature to be printed with the rebuttal argument) is: Larry Klein
(do not include degrees or titles; print or type signature in upper- and lower-case font)

* **TITLE OF SIGNER** (to be printed with the rebuttal argument) is: Sunnyvale Mayor
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡

Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:

[redacted]

ROV ONLY ACCEPTS WET OR DOCUSIGNED SIGNATURES (signatures will be redacted prior to posting online)